

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT			1. CONTRACT ID CODE		PAGE 1 OF 3 PAGES		
2. AMENDMENT/MODIFICATION NO. 02		3. EFFECTIVE DATE 3/7/2024		4. REQUISITION/PURCHASE REQ. NO.		5. PROJECT NO. (If applicable)	
6. ISSUED BY DLA Contracting Services Office - Philadelphia 700 ROBBINS AVENUE PHILADELPHIA PA 19111 Attention: A. Nicolucci 215-737-2698		7. ADMINISTERED BY (If other than Item 6)		CODE			
8. NAME AND ADDRESS OF CONTRACTOR (No., street, county, State and ZIP Code)				☒ 9A. AMENDMENT OF SOLICITATION NO. BAA-0004-21 ☒ 9B. DATED (SEE ITEM 11) 07/14/2021 ☐ 10A. MODIFICATION OF CONTRACT/ORDER NO. ☐ 10B. DATED (SEE ITEM 13)			
CODE		FACILITY CODE					

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended, ☒ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods:

(a) By completing items 8 and 15, and returning 1 copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or telegram which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment your desire to change an offer already submitted, such change may be made by telegram or letter, provided each telegram or letter makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA (If required)
N/A

**13. THIS ITEM ONLY APPLIES TO MODIFICATION OF CONTRACTS/ORDERS.
IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.**

CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NO. IN ITEM 10A.
☐	
☐	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation date, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).
☐	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
☐	D. OTHER (Specify type of modification and authority)

E. IMPORTANT: Contractor ☐ is not, ☐ is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)

See attached pages.

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER (Type or print)		16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print) Michelle M. Harrison	
15B. CONTRACTOR/OFFEROR (Signature of person authorized to sign)	15C. DATE SIGNED	16B. UNITED STATES OF AMERICA (Signature of Contracting Officer)	16C. DATE SIGNED

1. Section B.3. "Eligibility" on pages 7 is hereby revised as follows:

ADD:

Regulation (FAR).

B.3. Eligibility

To be eligible for award, all prospective offerors must meet certain minimum standards upon submission to be eligible for award, all prospective offerors must meet certain minimum standards pertaining to contractor/ subcontractor foreign affiliations, financial resources, adequacy of accounting systems, ability to comply with performance schedules, prior record of past performance, integrity, organization structure, experience, operational controls, technical skills facilities, and equipment.

For additional information and guidance concerning qualifications and standards for responsibility of prospective contractors, please refer to Part 9 of the Federal Acquisition Regulation (FAR), financial resources, adequacy of accounting systems, ability to comply with performance schedules, prior record of past performance, integrity, organization structure, experience, operational controls, technical skills facilities and equipment. For additional information and guidance concerning qualifications and standards for responsibility of prospective contractors, please refer to Part 9 of the Federal Acquisition Regulation (FAR).

2. Section B.9 is hereby revised as follows:

ADD:

The Research & Development (R&D) Program Management Office (PMO) may determine to transition an R&D project to the production environment. These determinations will be made on a case-by-case basis considering contractor performance, successful demonstration of technical capability, and alignment with the Defense Logistics Agency's (DLA) R&D Program objectives. Prior to making the determination to transition a project, the DLA R&D PMO will request that the contractor submit a transition plan for review. Upon review of the transition plan, the contractor will receive further instructions on submission of technical and cost proposal for the transition effort.

3. Section D .2, "White Papers," page 12, paragraph 1 is hereby revised as follows:

REMOVE:

White Papers will not be evaluated but will be reviewed to determine whether the proposed solution is technically feasible and viable (i.e., compatible with DoD constraints, technical environments, and other organizational requirements), and whether the White Paper presents a research project whose results end users are likely to adopt and that is of sufficient interest to DLA to warrant consideration of a technical proposal.

REPLACE:

White Papers will be reviewed against the topic to determine whether the proposed solution is technically feasible and viable (i.e., compatible with DoD constraints, technical environments and other organizational requirements), and whether the White Paper presents a research project whose results end users are likely to adopt and that is of sufficient interest to DLA to warrant consideration of a technical proposal.

4. Section E.5, "Technical Proposal"

ADD:

Government Furnished Property

1.1 DFARS 252.245-7005 Management and Reporting of Government Property. (JAN 2024)

(a) Definitions. As used in this clause—

As is means that the Government makes no warranty with respect to the serviceability and/or suitability

demilitarization, mutilation, or destruction by the Purchaser. Additional instructions are provided in accordance with Defense Demilitarization Manual, DoDM 4160.28–M, edition in effect as of the date of this sales contract. A Government representative will certify and verify demilitarization of items. Prepare demilitarization certificates in accordance with DoDM 4160.28, Volume 2, section 4.5, DEMIL Certificate (see figure 2, Example DEMIL Certificate).”

(iii) Removal and title transfer:

“Property requiring demilitarization shall not be removed, and title shall not pass to the Purchaser, until demilitarization has been accomplished and verified by a Government representative.”

(iv) Assumption of cost incident to demilitarization:

“The Purchaser agrees to assume all costs incident to the demilitarization and to restore the working area to its present condition after removing the demilitarized property.”

(v) Failure to demilitarize:

“If the Purchaser fails to demilitarize, mutilate, or destroy the property as specified in the sales contract, the Contractor may, upon giving 10 days written notice to the Purchaser—

(A) Repossess, demilitarize, and return the property to the Purchaser, in which case the Purchaser hereby agrees to pay to the Contractor, prior to the return of the property, all costs incurred by the Contractor in repossessing, demilitarizing, and returning the property;

(B) Repossess, demilitarize, and resell the property, and charge the defaulting Purchaser with all costs incurred by the Contractor. The Contractor shall deduct these costs from the purchase price and refund the balance of the purchase price, if any, to the Purchaser. In the event the costs exceed the purchase price, the defaulting Purchaser hereby agrees to pay these costs to the Contractor; or

(C) Repossess and resell the property under similar terms and conditions, and charge the defaulting Purchaser with all costs incurred by the Contractor. The Contractor shall deduct these costs from the original purchase price and refund the balance of the purchase price, if any, to the defaulting Purchaser. Should the excess costs to the Contractor exceed the purchase price, the defaulting Purchaser hereby agrees to pay these costs to the Contractor.”

(l) Restrictions on purchase or retention of Contractor inventory. The Contractor may not knowingly sell the inventory to any person or that person's agent, employee, or household member if that person—

(1) Is a civilian employee of DoD or the U.S. Coast Guard;

(2) Is a member of the Armed Forces of the United States, including the U.S. Coast Guard;

or

(3) Has any functional or supervisory responsibilities for or within DoD's property disposal, disposition, or plant clearance programs or for the disposal of contractor inventory.

(m) Proceeds from sales of surplus property. Unless otherwise provided in the contract, the proceeds of any sale, purchase, or retention shall be—

(1) Forwarded to the Contracting Officer;

(2) Credited to the Government as part of the settlement agreement pursuant to the termination of the contract;

(3) Credited to the price or cost of the contract; or

(4) Applied as otherwise directed by the Contracting Officer.

(End of clause)

1.2 Government Furnished Property Instructions

The Government does not anticipate that government furnished property (GFP) will be required for all areas of interest. In the event GFP is required, the Contracting Officer will incorporate the GFP and GFP attachment in accordance with DFARS PGI 245.103-72 at award.